

2:00 PM

LINE 5

25-CIV-09289

MICHAEL S. HARTMAN VS. TRACY FLEMING, ET AL.

MICHAEL S. HARTMAN
TRACY FLEMING

PRO SE

AMENDED MOTION FOR LEAVE TO FILE THIRD AMENDED COMPLAINT

TENTATIVE RULING:

The Amended Motion of Plaintiff Michael S. Hartman (“Plaintiff”) for Leave to File Third Amended Complaint is GRANTED. (See *Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530 [If a motion to amend is timely made and will not prejudice the opposing party, it is error to refuse permission to amend.].) No defendant has appeared in this action, and therefore no prejudice has been shown in allowing the amended complaint to be filed and served. Based on the liberal policy allowing amendment, the court therefore grants the motion.

The current pleading is the First Amended Complaint. On May 13, 2026, Plaintiff filed a motion for leave to file a second amended complaint. Then, on June 12, 2026, Plaintiff filed this amended motion for leave to file a third amended complaint that he appears to claim supersedes the prior motion for leave. The court therefore considers only this amended motion. However, no second amended complaint has been filed. Therefore, in amending, Plaintiff is to label his proposed pleading (Exh. 1 to Plaintiff’s Amended Declaration) as the Second Amended Complaint instead of a third amended complaint.

Plaintiff is to file the Second Amended Complaint with the court by July 24, 2026, and serve it on Defendants within sixty (60) days of the filing. (Cal. Rules of Court, rule 3.110(b).) The court vacates the October 14, 2026 case management conference and resets the conference for Wednesday January 20, 2027 at 9:00 a.m. before the Civil Commissioner, 800 North Humboldt St., San Mateo CA, 94401. Zoom appearances are allowed.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 6

25-CIV-09923

SARA CRABA VS. HEADSPACE INC.

SARA CRABA
HEADSPACE INC.

STEVEN CHIZEN
CHRISTOPHER A. CROSMAN

DEFENDANT'S MOTION TO COMPEL ARBITRATION AND STAY ACTION PENDING ARBITRATION

TENTATIVE RULING:

This is an employment law case. Plaintiff Sara Craba has sued Defendant Headspace, Inc. for Wrongful Termination, Sex/Gender Discrimination (FEHA), Retaliation (FEHA), and Failure to Prevent Discrimination and Retaliation.

Defendant has moved to compel arbitration pursuant to an alleged Arbitration Agreement.

Defendant's motion is GRANTED.

LEGAL STANDARD

Defendant brings the instant Motion to ask the Court to compel Plaintiff to arbitrate this matter pursuant to the Federal Arbitration Act (9 U.S.C. § 1, et seq.) (the "FAA"), and pending arbitration, to stay this action (9 U.S.C. § 3; Code Civ. Proc., § 1281.4.).

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

The right to compel arbitration has been waived by the petitioner; or

Grounds exist for rescission of the agreement.

(Code Civ. Proc., ¶ 1281.2, subds (a) & (b).)

A party meets its burden to establish the existence of the arbitration agreement by providing a copy thereof to the Court, or by stating the paragraph verbatim. (*Baker v. Italian Maple Holdings, LLC* (2017) 13 Cal.App.5th 1152, 1160; Cal. Rules of Court, rule 3.1330.) The arbitration agreement has been placed before this Court. (Evans Decl., Ex. C.) Arbitration is proper when an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2.) The initial determination of whether the parties agreed to arbitrate the dispute in question "involves two considerations: (1) whether there is a valid agreement to arbitrate between the parties; and (2)
